

LITIGATION HOLD NOTICE
PRESERVATION OF EVIDENCE – ANTICIPATED FEDERAL LITIGATION

Re: Preservation of All Records, Communications, and Evidence Related to *Kostiantyn Mars v. State of California, et al.* (Western District of Texas) and Related Santa Clara County Superior Court Matters (Case Nos. B2402220, 22FL003144, 22DV000779, and DCSS case 200000002626999)

Dear Recipient,

This letter constitutes a formal **Litigation Hold Notice** and demand to preserve evidence.

You are hereby notified that litigation is reasonably anticipated and has been initiated in the United States District Court for the Western District of Texas. The litigation concerns alleged constitutional violations, racketeering activity, and related claims arising from proceedings in Santa Clara County Superior Court, including but not limited to the custody of minor child Max Mars, judicial disqualification issues, and enforcement actions by the California Department of Child Support Services.

You are required to immediately take all reasonable steps to preserve any and all documents, records, communications, electronic data, videos, audio recordings, photographs, notes, memoranda, and any other materials that may be relevant to the above-referenced matters. This includes, but is not limited to:

- All emails, text messages, and written communications (including internal communications)
- All court filings, orders, minute orders, transcripts, and recordings
- All body camera footage, surveillance video, and audio recordings
- All records related to minor child Max Mars, including visitation reports and communications
- All financial records, including those related to wage garnishment and 401(k) accounts
- All records concerning judicial disqualification, change of venue requests, and complaints filed with oversight bodies

1 **You must not delete, destroy, alter, or modify** any potentially relevant materials. This
2 obligation applies to all employees, agents, contractors, and third parties under your control.

3 Please confirm in writing within **seven (7) days** of receipt of this notice that you have
4 implemented appropriate litigation hold procedures and that all relevant evidence is being
5 preserved.

6 Failure to preserve evidence may result in sanctions, including adverse inference instructions,
7 monetary sanctions, and other remedies available under federal law.

8 Should you have any questions regarding the scope of this litigation hold, please contact me
9 immediately.

10
11 Sincerely,

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13 **KOSTANTYN MARS**

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